

Missouri Revised Statutes

TITLE XII PUBLIC HEALTH AND WELFARE

CHAPTER 197 MEDICAL TREATMENT FACILITY LICENSES

Certificate of Need

197.300. Citation of law.

Sections 197.300 to 197.366 shall be known as the "Missouri Certificate of Need Law".
(L. 1979 H.B. 222 § 1, A.L. 1996 H.B. 1362)
Effective 7-12-96
7/12/1996

197.305. Definitions.

As used in sections 197.300 to 197.366, the following terms mean:

- "Affected persons": The person proposing the development of a new institutional health service, the public to be served, and health care facilities within the service area in which the proposed new health care service is to be developed;
- "Agency": The certificate of need program of the Missouri department of health and senior services;
- "Capital expenditure": An expenditure by or on behalf of a health care facility which, under generally accepted accounting principles, is not properly chargeable as an expense of operation and maintenance;
- "Certificate of need": A written certificate issued by the committee setting forth the committee's affirmative finding that a proposed project sufficiently satisfies the criteria prescribed for such projects by sections 197.300 to 197.366;
- "Develop": To undertake those activities which on their completion will result in the offering of a new institutional health service or the incurring of a financial obligation in relation to the offering of such a service;
- For beds in existing or proposed health care facilities licensed pursuant to chapter 198 and long-term care beds in a hospital as described in subdivision (3) of subsection 1 of section 198.012, six hundred thousand dollars in the case of capital expenditures, or four hundred thousand dollars in the case of major medical equipment, provided, however, that prior to January 1, 2003, the expenditure minimum for beds in such a facility and long-term care beds in a hospital described in section 198.012 shall be zero, subject to the provisions of subsection 7* of section 197.318;
- For beds or equipment in a long-term care hospital meeting the requirements described in 42 CFR, Section 412.23(e), the expenditure minimum shall be zero; and
- For health care facilities, new institutional health services or beds not described in paragraph (a) or (b) of this subdivision one million dollars in the case of capital expenditures, excluding major medical equipment, and one million dollars in the case of medical equipment;
- "Health service area": A geographic region appropriate for the effective planning and development of health services, determined on the basis of factors including population and the availability of resources, consisting of a population of not less than five hundred thousand or more than three million;
- "Major medical equipment": Medical equipment used for the provision of medical and other health services;
- The development of a new health care facility costing in excess of the applicable expenditure minimum;
- The acquisition, including acquisition by lease, of any health care facility, or major medical equipment costing in excess of the expenditure minimum;

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1. ***Affected persons***:	The person proposing the development of a new institutional health service, the public to be served, and health care facilities within the service area in which the proposed new health care service is to be developed;
2. ***Agency***:	The certificate of need program of the Missouri department of health and senior services;
3. ***Capital expenditure***:	An expenditure by or on behalf of a health care facility which, under generally accepted accounting principles, is not properly chargeable as an expense of operation and maintenance;
4. ***Certificate of need***:	A written certificate issued by the committee setting forth the committee's affirmative finding that a proposed project sufficiently satisfies the criteria prescribed for such projects by sections 197.300 to 197.366;
5. ***Develop***:	To undertake those activities which on their completion will result in the offering of a new institutional health service or the incurring of a financial obligation in relation to the offering of such a service;
6. ***Expenditure minimum***:	Shall mean:
a)	For beds in existing or proposed health care facilities licensed pursuant to chapter 198 and long-term care beds in a hospital as described in subdivision (3) of subsection 1 of section 198.012, six hundred thousand dollars in the case of capital expenditures, or four hundred thousand dollars in the case of major medical equipment, provided, however, that prior to January 1, 2003, the expenditure minimum for beds in such a facility and long-term care beds in a hospital described in section 198.012 shall be zero, subject to the provisions of subsection 7* of section 197.318;
b)	For beds or equipment in a long-term care hospital meeting the requirements described in 42 CFR, Section 412.23(e), the expenditure minimum shall be zero; and
c)	For health care facilities, new institutional health services or beds not described in paragraph (a) or (b) of this subdivision one million dollars in the case of capital expenditures, excluding major medical equipment, and one million dollars in the case of medical equipment;
7. ***Health service area***:	A geographic region appropriate for the effective planning and development of health services, determined on the basis of factors including population and the availability of resources, consisting of a population of not less than five hundred thousand or more than three million;
8. ***Major medical equipment***:	Medical equipment used for the provision of medical and other health services;
9. ***New institutional health service***:	a) The development of a new health care facility costing in excess of the applicable expenditure minimum;
	b) The acquisition, including acquisition by lease, of any health care facility, or major medical equipment costing in excess of the expenditure minimum;

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